



CHAPTER xvi.

An Act to authorise the Metropolitan Railway Company to guarantee and subscribe moneys in respect of the British Empire Exhibition and for other purposes. A.D. 1922.
[31st May 1922.]

WHEREAS the British Empire Exhibition (1923) Incorporated being a company limited by guarantee and registered under the Companies Acts 1908 to 1917 (in this Act called "the association") has been incorporated with a view to organising and holding in or near London an exhibition for the purpose of showing illustrating or otherwise making known the natural resources products arts crafts manufactures industries science inventions and activities of the United Kingdom the overseas dominions the Empire of India and any or all of the British colonies possessions dependencies or protectorates and the association is authorised to form a guarantee fund and receive subscriptions thereto of persons whether members or not of the association subscribing or guaranteeing sums of money or credits for the purpose of carrying out the objects of the association and defraying the expenses incurred in conducting the undertaking;

And whereas the association propose to hold in or subsequent to the year 1923 such an exhibition as aforesaid (in this Act called "the said exhibition") on lands situated near to the railway of the Metropolitan Railway Company (in this Act called "the Company"):

And whereas the association have formed a guarantee fund on the footing that each guarantor who shall become

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A.D. 1922. a subscriber thereto shall undertake in the event of a loss or deficiency arising in connection with the holding of the said exhibition or the preparation therefor to pay to the association such a proportion of the loss or deficiency as may be fixed by the terms of his undertaking:

And whereas it is a matter of imperial and national importance that the said exhibition should be held and it is expedient that power should be conferred upon the Company to guarantee or subscribe moneys in manner provided by this Act:

And whereas it is also expedient that such further powers should be conferred upon the Company and that such further provisions should be made as are contained in this Act:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited for all purposes as the Metropolitan Railway Act 1922.

Incorporation of general Acts.

2. The following Acts are except where the same are inconsistent with or expressly varied by this Act incorporated with and form part of this Act (that is to say):—

The Companies Clauses Consolidation Act 1845; and
The Lands Clauses Acts (except the provisions with respect to the purchase and taking of lands otherwise than by agreement).

Power to Company to guarantee or subscribe towards loss or deficiency arising from exhibition.

3. The Company may on such terms and conditions as they think fit guarantee or subscribe moneys towards any loss or deficiency or any part thereof which may result to or be incurred by the association from or in connection with the holding of the said exhibition or (whether the said exhibition be held or not) the preparation for the said exhibition and may enter into and carry

into effect agreements and make payments from time to time out of the Company's funds accordingly Provided always that the Company shall not guarantee or subscribe or undertake any liability to guarantee or subscribe under the provisions of this section any sum or sums exceeding in the whole fifty thousand pounds.

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4. Notwithstanding anything contained in the Companies Clauses Consolidation Act 1845 no person shall be disqualified from being a director of the Company by reason of his holding or continuing to hold any office or place of trust or profit under the Company nor shall any director be required to cease from voting or acting as a director by reason of his accepting or continuing to hold any such office or place of trust or profit.

As to qualification of directors.

5. The continuing directors may act notwithstanding any vacancy in their body but so that if at any time the number of directors of the Company holding office shall be less than the minimum number prescribed by the Metropolitan Railway Act 1854 as amended by the Metropolitan Railway Act 1912 the directors shall not except for the purpose of filling vacancies and allotting shares or stock to any proposed director or directors act so long as the number is below such minimum.

Continuing directors.

6.—(1) The directors of the Company may appoint one or more of their body to be managing director or managing directors of the Company either for a fixed term or without any limitation as to time and may remove or dismiss him or them from office and appoint another or others in his or their place or places.

As to appointment of managing director.

(2) A managing director shall not while holding that office be subject to retirement by rotation and shall not be taken into account in determining the rotation of retirement of directors but if he cease to hold the office of director from any other cause he shall ipso facto immediately cease to be a managing director.

(3) The remuneration of a managing director shall from time to time be fixed by the directors and may be by way of salary or commission or participation in profits or by any or all of those modes and may be in addition to any remuneration he may be entitled to as director.

(4) The directors may intrust to and confer upon any managing director such of the powers exerciseable

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A.D. 1922. by the directors and subject to such conditions as they
— may think fit and may from time to time revoke withdraw
alter or vary all or some of such powers.

Notice of
candidature
for office of
director.

7. Except in the case of a director retiring by rota-
tion and offering himself or being proposed for re-election
or except in the case of a director being elected by the
board of directors to fill a casual vacancy no person shall
be capable of being elected a director of the Company
unless notice in writing that such person intends to offer
himself or will be proposed for the office of director shall
have been given to the secretary of the Company or left
at the office of the Company fourteen days at least before
the day of election.

Loss or
destruction
of share or
stock or
debenture
stock certifi-
cate.

8. If any share or stock or debenture stock certificate
be lost or destroyed then notwithstanding anything in the
Companies Clauses Consolidation Act 1845 the directors
in addition to requiring proof to their satisfaction of such
loss or destruction may require the party entitled to the
certificate so lost or destroyed to give to the Company
and the directors such indemnity as the directors shall
deem adequate as a condition precedent to the issue to
such party of a similar certificate to that so lost or
destroyed.

Power to
surplus
lands com-
mittee as
to invest-
ments.

9. Paragraph (E) of subsection (6) of section 39 of
the Metropolitan Railway Act 1885 and the like paragraph
contained in the scheme set out in the schedule to the
Metropolitan Railway Act 1887 and confirmed by section 11
of such last mentioned Act shall be read and construed as
if the following proviso were inserted immediately before
the words "All such properties shall be purchased and
" investments made in the name of the Company and
" not in the name of the surplus lands committee"
namely :—

" Provided always that if in the opinion of the
committee (testified by a resolution passed by the
committee to that effect) it is desirable that any
such net proceeds as aforesaid should be invested
temporarily but that the market conditions then
prevailing render it inexpedient to invest such net
proceeds in any of the investments hereinbefore
authorised then the committee shall have power
to and may invest any such net proceeds in respect

of which they shall resolve as aforesaid or the income resulting from any investment of such net proceeds in any securities in which trustees are for the time being by law authorised to invest trust funds.” A.D. 1922.

10. The Company may hold use and appropriate for the general purposes of their undertaking the lands houses and premises hereinafter mentioned which have already been acquired by the Company and are shown on the plan which has been signed in duplicate by the Right Honourable James Fitzalan Hope the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which plan one copy has been deposited in the Office of the Clerk of the Parliaments in the House of Lords and one copy in the Private Bill Office of the House of Commons and thereon coloured red and the expenditure by the Company in connection with the acquisition of the said lands houses and premises is hereby sanctioned and confirmed and the said lands houses and premises shall be deemed to be acquired under the powers of this Act. Purchase of certain lands confirmed.

The lands houses and premises hereinbefore referred to are :—

- (a) The lands houses and buildings in the parish of Willesden in the county of Middlesex situate on the south-west side of Northway and Village Way in the said parish of Willesden and being respectively known as Nos. 9 10 11 12 13 and 14 Northway aforesaid and Nos. 3 and 4 Village Way aforesaid and forming part of the fields or inclosures numbered 175 and 175A on the $\frac{1}{2500}$ ordnance map 1914 edition Middlesex sheet XI. 14 :
- (b) The piece or parcel of land containing in the whole 10·750 acres or thereabouts and forming the greater part of the field or inclosure No. 784 on the $\frac{1}{2500}$ ordnance map 1914 edition Middlesex sheet X. 10 situate in the parish of Ruislip in the county of Middlesex and situate on the north side of and adjoining the Company's Eastcote Halt Station Eastcote in the said parish of Ruislip and bounded on the south by the said

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station and the railway and premises of the Company on the north by Devonshire Lodge and the land occupied therewith on the west by a lane leading from Northolt to Eastcote Village and on the east by land now in the occupation of Mary Westacott of Field End Farm Eastcote aforesaid.

Costs of Act. **11.** All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

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